

HCS HBs 1717 & 1643 -- ALTERNATIVE THERAPIES

SPONSOR: West

COMMITTEE ACTION: Voted "Do Pass with HCS" by the Standing Committee on Emerging Issues by a vote of 7 to 2 with 2 members voting present. Voted "Do Pass" by the Standing Committee on Rules-Legislative by a vote of 8 to 0.

The following is a summary of the House Committee Substitute for HBs 1717 & 1643.

As specified in this bill, any person who acquires, uses, produces, possesses, transfers, or administers psilocybin for the person's own therapeutic use will not be in violation of State or local law and will not be subject to a civil fine, penalty, or sanction so long as the person meets the following conditions:

- (1) Is a veteran or a first responder, as those terms are defined in the bill;
- (2) Is 21 years of age or older;
- (3) Suffers from posttraumatic stress disorder, major depressive disorder, or a substance use disorder or requires end-of-life care;
- (4) Has enrolled in a study to study the use of psilocybin to treat posttraumatic stress disorder, major depressive disorder, or substance use disorders or for end-of-life care;
- (5) Informs the Department of Mental Health that the person plans to acquire, use, produce, possess, transfer, or administer psilocybin in accordance with this Section;
- (6) Provides the Department with documents specified in the bill. The Department must maintain the confidentiality of any personally identifiable protected information collected from anyone who provides information to the Department;
- (7) Use of psilocybin occurs only in the presence of a facilitator who meets requirements outlined in the bill;
- (8) Ensures that a laboratory licensed by the State to test controlled substances tests the psilocybin the person intends to ingest; and

(9) The person limits the use of psilocybin to no more than 150 milligrams of psilocybin analyte (4-phosphoryloxy-N, N-dimethyltryptamine) during any 12-month period.

The Department must prepare and submit to the Governor, Lieutenant Governor, and the General Assembly annual reports on any information collected by the Department on the implementation and outcomes of the use of psilocybin.

This bill specifies that, a physician will not be subject to criminal or civil liability or sanction under the laws of this State for providing documentation that a person suffers from posttraumatic stress disorder, major depressive disorder, or a substance use disorder or requires end-of-life care, and no State agency or regulatory board can revoke, fail to renew, or take any other action against a physician's license issued under Chapter 334, RSMo, based solely on the physician's provision of documentation that a person suffers from posttraumatic stress disorder, major depressive disorder, or a substance use disorder or requires end-of-life care.

This bill also requires the Department, in collaboration with a hospital operated by the an institution of higher education in this State or contract research organizations conducting trials approved by the United States Food and Drug Administration in Missouri, to conduct a study on the efficacy of using alternative medicines and therapies, including, but not limited to, the use of psilocybin for the treatment of patients suffering from posttraumatic stress disorder, major depressive disorder, substance use disorders, or who require end-of-life care.

The bill specifies that the study must include the therapeutic efficacy of using psilocybin in the treatment of veterans who suffer from posttraumatic stress disorder, major depressive disorder, or substance use disorders or who require end-of-life care, as well as a literature review and the submission of various reports.

The Department, any health care providers, and any person participating in the study will not be subjected to criminal or civil liability or sanction for the participation in the study, except in cases of gross negligence or willful misconduct. A physician will not be subject to criminal or civil liability or sanction under the laws of this State for referring a patient to the study under this section, and no state agency or regulatory board can revoke, fail to renew, or take any other action against

a physician's license based solely on the physician's referral of a patient to the study under this section.

The Department must prepare and submit to the Governor, Lieutenant Governor and the General Assembly:

- (1) Quarterly reports on the progress of the study; and
- (2) A written report, submitted one year following the commencement of the study, which must:
 - (a) Contain the results of the study and any recommendations for legislative or regulatory action; and
 - (b) Highlight those clinical practices that appear to be most successful as well as any safety or health concerns. The Department must maintain the confidentiality of any personally identifiable protected information collected during the study.

This bill is similar to HCS HB 829 (2025) and HCS HB 1830 (2024).

The following is a summary of the public testimony from the committee hearing. The testimony was based on the introduced version of the bill.

PROPOSERS: Supporters say that this bill does not promote legalization of any drug, but rather seeks data from clinical trials that can be of use to the Food and Drug Administration (FDA). Currently, the FDA does not approve of these substances, so there is no incentive for the pharmaceutical industry to conduct any studies. Supporters further say that many veterans and first responders are required to endure very difficult situations as part of their regular duties, but they are not legally allowed to make use of some very effective treatments for their PTSD. Allowing the use of psilocybin would provide a safe route for vets and first responders to wean off ineffective drugs that have been approved by the FDA. Supporters state that psilocybin has shown to improve circumstances for individuals who suffer from depression, suicidal ideation, and addiction.

Testifying in person for the bill were Representative West; William "Trey" Warren III, PhD, Veterans Exploring Treatment Solutions, Americans For Ibogaine and Modern Health Coalition; Edward Russo; Alina Vera Love; Anne Bethune; Dale Morgan, Psychedelic Society of Kansas City; Gregory Williams, Modern Health Coalition; Shaun Broeker, Modern Health Coalition; Walter D. Disney; and William Wisner, Grunt Style Foundation.

OPPONENTS: Those who oppose the bill say that the use of drugs and other substances that have not yet been approved by the FDA should be prohibited. Opponents further state that physicians want to make use of all proper medications in the treatment of their patients, including vets and first responders, but prescribing something like psilocybin should not be a part of the regimen.

Testifying in person against the bill were Missouri State Medical Association; and Missouri State Medical Association.

OTHERS: Others testifying on the bill say psilocybin treatments are administered in a very straightforward fashion, and are therefore less expensive to study. Psilocybin has more beneficial outcomes than FDA-approved drugs currently on the market, are far safer to use, and offer a better alternative to the broken system that is now in place.

Testifying in person on the bill was Dr. Danielle Adams.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.